

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DUDLEY ESDAILE Jr.,

Plaintiff,

-against-

Index No.:

Date Filed:

Plaintiff designates
KINGS COUNTY
as the place of trial

The basis of the venue
is Plaintiff's residence

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER RYAN
NORWOOD (Tax # 949403), and POLICE OFFICER
STEVEN FURSA (Shield # 13278),

Defendant(s).

-----X
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
August 1, 2016

Yours, etc.

LAW OFFICE OF IKE DIBIA



BY: Ike Dibia
Attorney for Plaintiff(s)
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

To:

The City of New York
c/o Corporation Counsel
City of New York Law Department
100 Church Street
New York, NY 10007

P.O. Ryan Norwood (Tax # 949403)
71st Police Precinct
421 Empire Blvd.
Brooklyn, NY 11225

P.O. Steven Fursa (Shield # 13278)
71st Police Precinct
421 Empire Blvd.
Brooklyn, NY 11225

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DUDLEY ESDAILE Jr.,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER RYAN
NORWOOD (Tax # 949403), and POLICE OFFICER
STEVEN FURSA (Shield # 13278),

Defendant(s).

-----X

DUDLEY ESDAILE, Jr., (hereinafter "Plaintiff), by his attorney(s) THE LAW OFFICE
OF IKE DIBIA, complaining of the defendants the CITY OF NEW YORK, POLICE OFFICER
RYAN NORWOOD (Tax # 949403), and POLICE OFFICER STEVEN FURSA (Shield #
13278), (collectively referred to as "defendant officers"), upon information and belief, alleges as
follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to Plaintiff
under color of statute, ordinance, regulation, custom; and/or to redress the deprivation of rights,
privileges, and immunities secured to Plaintiff by the Fourth, Fifth and Fourteenth Amendments
to the Constitution of the United States, and by Title 42 U.S.C. § 1983; and arising under the law
and statutes of the City and/or State of New York.

THE PARTIES

2. At all times material to this complaint, Plaintiff was, and still is, a resident of the
City of New York, who at all times material and relevant to this complaint resided, and still
resides, in Kings County, City and State of New York.

3. Plaintiff, Dudley Esdaile is an African American male of full age.

4. At all times mentioned, Defendant the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

5. At all relevant times, the defendants officers were, and still are, law enforcement officers in the employ of the New York City Police Department (hereinafter "NYPD").

6. At all times herein, the defendant officers were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York.

7. Plaintiff sues each defendant in his individual and official capacities.

FACTUAL ALLEGATIONS

8. On or about December 20, 2014, at approximately 12:30 a.m., the Plaintiff, Dudley Esdaile, Jr., (hereinafter "Esdaile") was standing lawfully in front of a building described as 408 Rogers Avenue, Brooklyn, New York 11225 (hereinafter "subject location").

9. That at that time, the Plaintiff Esdaile, was standing on the sidewalk with another African American male, in front of a Café at the subject location.

10. That at that time, the defendant officers approached the Plaintiff, Esdaile, and asked him if he was smoking marihuana. He responded by stating that he was not smoking marihuana, at which time the defendants' turned him around, and handcuffed him. There was absolutely no basis for the above-referenced defendant officers to handcuff and arrest the Plaintiff .

11. That the Plaintiff, Esdaile was illegally and unlawfully arrested by the defendant officers.

12. Following his arrest, the Plaintiff Esdaile, was taken to the Police Department of the City of New York 71st Precinct, where he was processed, or otherwise photographed and fingerprinted.

13. Subsequently the Plaintiff was issued a Desk Appearance Ticket, where he was charged with the following offences:

"Criminal Possession in the Fifth Degree" (P.L. 221.10 01).

14. Defendant Police Officer Steven Fursa (Shield # 13278) signed the above-referenced Desk Appearance Ticket.

15. The Plaintiff, Dudley Esdaile was released from the 71st Precinct at approximately 06:00 a.m. on December 20, 2014.

16. The Kings County Arrest number for Plaintiff was K14710056.

17. On January 30, 2015, the Office of the District Attorney, Kings County, declined to prosecute the criminal action against the Plaintiff.

FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF: UNLAWFUL SEARCH
UNDER 42 U.S.C § 1983

18. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 17 of this complaint as though fully set forth herein.

19. Following Plaintiff's arrest, the defendants searched and/or caused Plaintiff and his property to be searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.

20. As a result of the foregoing, Plaintiff and/or his property was subjected to an illegal and improper search.

21. The foregoing unlawful search violated Plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

**SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF: FALSE ARREST AND
FALSE IMPRISONMENT UNDER 42 U.S.C § 1983**

22. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 21 of this complaint as though fully set forth herein.

23. The above-described respective arrest, detention and imprisonment of Plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing Plaintiff's arrest or subsequent detention.

24. As a result of Plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.

25. Consequently, the Plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**THIRD CAUSE OF ACTION ON BEHALF OF PLAINTIFF: FAILURE TO
INTERVENE UNDER 42 U.S.C § 1983**

26. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 25 of this complaint as though fully set forth herein.

27. Each and every individual defendant had an affirmative duty to intervene on each Plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.

28. The individual defendants failed to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.

29. As a consequence of said defendants' actions, Plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

FOURTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST THE
DEFENDANT CITY OF NEW YORK: MUNICIPAL LIABILITY UNDER 42 U.S.C § 1983

30. By this reference, Plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 29 of this complaint as though fully set forth herein.

31. The defendant officers arrested and incarcerated the plaintiff in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.

32. The acts complained of were carried out by the individual defendants in their capacities as police officers and officials, with the actual and/or apparent authority attendant thereto.

33. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.

34. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practices:

- a. wrongfully arresting individuals on the pretext that they Are/were involved in illegal vice transactions;
- b. manufacturing evidence against individuals allegedly involved in illegal vice transactions;
- c. unlawfully searching detainees and/or their property in the absence of any reasonable suspicion that said individuals were concealing weapons or contraband;
- d. arresting innocent persons in order to meet "productivity" goals (i.e. arrest quotas); and
- e. wrongfully and unreasonably brutalizing innocent members of the public, despite the lack of probable cause to do so.

35. The aforesaid event was not an isolated incident. The City and its police commissioner has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City and its police commissioner have allowed policies and practices that allow the aforementioned to persist.

36. For example, the well documented failures of the Civilian Complaint Review Board ("the CCRB"), a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In

addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, once finding misconduct by an officer.

37. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event, such as the matter at bar, that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which has been done on many occasions.

38. Further, the City and its police commissioner have no procedure to notify individual officers or their supervisors of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected.

39. Additionally, according to a report of the New York City Bar Association issued in 2000, the City and Kelly have isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.

40. The existence of the aforesaid unconstitutional customs and policies may also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set "productivity goals".

41. Furthermore, the existence of the aforesaid unconstitutional customs and policies may also be inferred from the ruling (Docket entry 32) of the Court (Eastern District of New York), in the case(s) of Jose Colon v. City of New York, et al (09-cv-8) and Maximo Colon v. City of New York, et al (09-cv-9), wherein the Court stated, *inter alia*, that "*Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting officers of the New York City Police Department*", and that "*there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving the illegal conduct of the kind now charged*".

42. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

- (a) The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.
- (b) The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the

Fifth and Fourteenth Amendments to the Constitution of the United States.

- (c) The right to be free from unreasonable detention and/or continued detention without probable cause in that the plaintiff was detained.
- (d) The right to be free from the use of excessive force.

43. As a result of the actions of the defendants, the plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned the plaintiff thereby depriving him of his liberty without due process of law.

44. The defendant officers were the actual agents of the defendant City of New York and were following the customs, practices, ordinances and/or regulations of the City of New York when they violated the plaintiff's constitutional and civil rights, and the City of New York is therefore responsible for their acts, and liable to the plaintiff for the damages he suffered.

45. The actual principal/agent relationship between defendant City and the defendant officers was created by the fact they were employees of defendant City, and the City had the right to, and it did indeed regulate and control the activities and conduct of the defendant officers.

46. The defendant officers' actions were vicious, wicked, cold-hearted, intentional, malicious, unwarranted and in violation of the law. The individual defendants had full knowledge that the charges made before the Court against the plaintiff were false and untrue.

WHEREFORE, Plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be

proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including each Plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
August 1, 2016

LAW OFFICE OF IKE DIBIA



Ike Dibia
Attorney for the Plaintiff
DUDLEY ESDAILE, Jr.
801 Franklin Avenue
Brooklyn, N.Y. 11238
(718) 230-1517

VERIFICATION

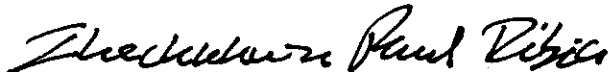
STATE OF NEW YORK)
)
COUNTY OF KINGS) ss.:

DUDLEY R. ESDAILE, Jr. being duly sworn, deposes and says:

1. I am the plaintiff identified and named in the within complaint.
2. I have read the foregoing complaint and know the contents thereof to be true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters your deponent believes them to be true.


Dudley R. Esdaile, Jr.

Subscribed and sworn to before me
this 1st day of August, 2016.


Notary Public



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

DUDLEY ESDAILE Jr.,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER RYAN
NORWOOD)Tax# 949403), and POLICE OFFICER
STEVEN FURSA (Shield # 13278),

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF IKE DIBIA
Attorney(s) for Plaintiff
801 Franklin Avenue
Brooklyn, New York 11238
(718) 230-1517

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to
practice in the courts of New York State, certifies that, upon
information and belief and reasonable inquiry, the contentions
contained in the annexed document are not frivolous.

Dated: 8-1-2016


Ike Dibia

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 200_

Attorneys for Defendant(s)
